Naqaash v Nasik [2024] DIFC SCT 309

OCTOBER 01, 2024 SCT - JUDGMENTS AND ORDERS

Claim No. SCT 309/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

In the name of His Highness Sheikh Mohammad Bin Rashid Al Maktoum, Ruler of Dubai

IN THE SMALL CLAIMS TRIBUNAL

BEFORE H.E. JUSTICE MAHA AL MHEIRI

BETWEEN

NAQAASH

Claimant

and

NASIK

Defendant

Hearing :	27 August 2024
Judgment :	1 October 2024

AMENDED JUDGMENT OF H.E. JUSTICE MAHA AL MHEIRI

UPON the Claim Form being filed on 26 July 2024 (the "Claim")

AND UPON a hearing held before H.E. Justice Maha Al Mheiri on 27 August 2024, with the Claimant's representative and the Defendant in attendance (the "Hearing")

AND UPON reviewing the documents and evidence submitted in the Court file

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the Claimant the amount of **AED 27,000.**

2. The Defendant shall pay the Claimant's court fee in the amount of **AED 540.**

Issued by:

Delvin Sumo
SCT Judge and Assistant Registrar
Date of issue: 26 September 2024
Date of re-issue:1 October 2024
At: 10am

THE REASONS

Parties

1. The Claimant is Naqaash (the "Claimant"), a company located in DIFC and previous employer of the Defendant.

2. The Defendant is Nasik (the "Defendant"), an individual that was employed by the Claimant.

Background and Hearing

3. The underlying dispute arises over the employment of the Defendant by the Claimant pursuant to an Employment Contract dated 25 April 2024 (the "Employment Contract").

4. The Defendant commenced his employment on 13 May 2024 to provide marketing and business development services to the Claimant. The Defendant was provided with a laptop and a tablet to assist with his role.

5. On 3 June 2024, the Defendant messaged the owner of the Claimant, Nasr, for a salary advance, which Nasr agreed to give to the amount of AED 20,000.

6. During the course of his employment, the Claimant noticed that the Defendant had behavioral issues expressed through poor communication skills, making decisions/commitments on behalf of the Claimant without approval, and a lack of transparency in his work. The Claimant had numerous conversations to address these issues with the hope it would improve with no outcome.

7. On 19 July 2024, there was an incident at the office where Nasr, was trying to log in to their social media accounts, but his access was denied. When the Claimant contacted the Defendant they were unable to retrieve any of the login passwords for the accounts that he had set up on behalf of the Claimant. In response to the Nasr's concern, the Defendant was verbally abusive and left the office with the laptop and tablet.

8. On 20 July 2024, Nasr expressed his concern toward the Defendant through WhatsApp and informed him at that time that he is suspended until further notice.

9. The Defendant then sent aggressive messages to Nasr in relation to his children which Nasr deemed to be a threat. The Claimant also sent Nasr a screen shot of a message from his personal Gmail account, showing that he had hacked into his personal email.

10. On 26 July 2024, Nasr formally terminated the Defendant with immediate effect. Nasr contacted the Defendant in relation to the advance salary that he borrowed from the Claimant as salary advance to help him get his life in order to the amount of AED 20,000. The Defendant denied receiving this money as advance payment from the Claimant.

11. The Claimant submits that the Defendant's monthly salary was paid regularly and the advance payment was never repaid, with the termination of the employment the advance was due immediately along with the return of the laptop and tablet.

12. On 26 July 2024, the Claimant filed a case in the DIFC Courts Small Claims Tribunal ("SCT") against the Defendant seeking the refund of the loan to the amount of AED 20,000 and return the laptop and tablet to the Claimant and court fees.

13. On 29 July 2024, the Defendant filed an Acknowledgment of Service intending to defend the whole claim.

14. The Court scheduled a Consultation before SCT Judge Delvin Sumo on 8 August 2024, but the parties were unable to reach a settlement. In line with the rules and procedures of the SCT, this matter was referred to me for determination, pursuant to a Hearing held on 27 August 2024 with the parties in attendance.

15. During the course of the Hearing, the Claimant made submissions in relation to additional claims and the Defendant also made submissions to the fact that the Claimant had failed to pay his employment entitlements. These additional claims and Counterclaim were not filed formally before the Court pursuant to the Rules of the DIFC 21.8, therefore I shall not address them in my findings below.

Findings

16. This dispute is governed by DIFC Employment Law No. 4 of 2021 (the "DIFC Employment Law") in conjunction with the relevant Employment Contract, ppursuant to Clause 8:

> "8.1 This employment contract is consistent with the employment laws and regulations of DIFC. In the event of any inconsistencies or conflicts with the employment laws and regulations of DIFC, the DIFC laws shall prevail and be enforced in this Agreement."

The Refund of the Loan Amount

17. The Claimant provided screen shots of a WhatsApp conversation where the Claimant agrees to the Defendant's request of an advance salary payment in the amount of AED 20,000. In addition, the Claimant provided evidence to support that the payment has been wired to the Defendant.

> “Salam alikom sir I am writing to urgently request a salary advance due to an unforeseen situation. i received a warning from the municipality to move my car immediately, or it will be towed, resulting in a fine. I managed to get it to a workshop yesterday, but I am currently out of cash to cover the repair costs and my daily expenses I would be extremely grateful if you could approve an advance on my salary to help me manage this unexpected expense. Your prompt assistance in this matter would greatly relieve my current financial Strain Thank you for your understanding and support”

In reply the Claimant sent back the following:

> “WA. No problem Nasik. If I send you 20,000 today will that work for you”

18. In review of the submission, there is no evidence before the Court that proves that the Defendant repaid the salary advance in the amount of AED 20,000 to the Claimant.

19. As such, the Defendant shall pay the Claimant the advance salary in the amount of AED 20,000.

The Claimant’s Claim for the Laptop and Tablet

20. The Claimant seeks the return of the tablet and laptop that were taken by the Defendant when he left the office.

21. The Defendant submits that the tablet and laptop are held by the hotel that he was staying in and did not pay the hotel bill. The Defendant submits that if this bill is paid the Claimant will receive the laptop and tablet.

22. The Court is satisfied that the Defendant’s statement that the tablet and laptop are held by a third party is confirmation that the Defendant will not return the items, as such the Defendant shall pay the Claimant the monetary amount equivalent to the tablet and laptop in the amount of AED 7,000.

In Conclusion

23. The Defendant shall pay the Claimant the amount of AED 27,000.

24. The Defendant shall pay the Claimant’s court fee in the amount of AED 540.